

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MARIAN MORENO,

Plaintiff(s),

-against-

CITY OF NEW YORK, OFFICER CHRISTOPHER
ESTRELLA, OFFICER MATTHEW OLIVA, JOHN DOE
OFFICERS 1-2,

Defendant(s).

Index No.:

Basis of Venue: Plaintiff's
residence

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 22, 2022

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:



John V. Tait, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574 8330
Fax: (914) 358-5379

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MARIAN MORENO,

Index No.:

Plaintiff(s),

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, OFFICER CHRISTOPHER
ESTRELLA, OFFICER MATTHEW OLIVA, JOHN DOE
OFFICERS 1-2,

Defendant(s).

JURY TRIAL DEMANDED

Plaintiff, by and through her undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as and for her complaint against defendants states:

1. At all relevant times herein, plaintiff, (hereinafter "Plaintiff"), was and is a resident of the State of New York, County of Queens.

2. At all relevant times herein, THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. On or about October 17, 2021, and at all relevant times herein, OFFICER CHRISTOPHER ESTRELLA was a duly sworn police officer employed by THE CITY OF NEW YORK.

4. On or about October 17, 2021, and at all relevant times herein, OFFICER MATTHEW OLIVA was a duly sworn police officer employed by THE CITY OF NEW YORK.

5. On or about October 17, 2021, and at all relevant times herein, JOHN DOES 1-2 were duly sworn police officers employed by THE CITY OF NEW YORK.

6. On or about October 17, 2021, plaintiff was stopped by Macy's personnel and accused of shoplifting at the Macy's store located at the Queens Center Mall located at 90-15 Queens Blvd, Queens, NY 11373.

7. Defendants OFFICER CHRISTOPHER ESTRELLA and OFFICER MATTHEW OLIVA responded to the Queens Center Mall and arrested plaintiff.

8. While escorting plaintiff in handcuffs from the Macy's store, Defendant OFFICER CHRISTOPHER ESTRELLA groped and fondled plaintiff, including her buttocks, without her consent, and in view of, and with the knowledge of, OFFICER MATTHEW OLIVA.

9. Plaintiff was taken to the 110 Precinct of the New York Police Department by Defendants OFFICER CHRISTOPHER ESTRELLA and OFFICER MATTHEW OLIVA.

10. Upon arriving at the 110 Precinct, Defendant OFFICER CHRISTOPHER ESTRELLA escorted plaintiff to a holding cell, and continued to fondle and grope plaintiff, including her buttocks, without her consent, and again while escorting her to the holding cell in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

11. While being held at the 110 Precinct, OFFICER CHRISTOPHER ESTRELLA removed plaintiff from the holding cell multiple times and continued to fondle and grope plaintiff, including her buttocks, without out her consent in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

12. While being held at the 110 Precinct, OFFICER CHRISTOPHER ESTRELLA transferred plaintiff from one holding cell to another, and continued to fondle and grope plaintiff,

including her buttocks, without out her consent in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

COUNT I: ASSAULT AND BATTERY

13. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs as if the same were more fully set forth herein at length.

14. On or about October 17, 2021, plaintiff was in the Macy's store located at the Queens Center Mall located at 90-15 Queens Blvd, Queens, NY 11373.

15. At the aforesaid date and place, OFFICER CHRISTOPHER ESTRELLA and OFFICER MATTHEW OLIVA responded to the Queens Center Mall and arrested plaintiff.

16. At the aforesaid date and place, OFFICER CHRISTOPHER ESTRELLA sexually assaulted the Plaintiff and subjected her to physical force all without warning, provocation, justification, or privilege to do so.

18. Plaintiff was taken to the 110 Precinct of the New York Police Department by Defendants OFFICER CHRISTOPHER ESTRELLA and OFFICER MATTHEW OLIVA.

19. Upon arriving at the 110 Precinct, Defendant OFFICER CHRISTOPHER ESTRELLA escorted plaintiff to a holding cell, and continued to fondle and grope plaintiff, including her buttocks, without her consent, in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

20. While being held at the 110 Precinct, OFFICER CHRISTOPHER ESTRELLA removed plaintiff from the holding cell multiple times and continued to fondle and grope plaintiff, including her buttocks, withoutout her consent in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

21. While being held at the 110 Precinct, OFFICER CHRISTOPHER ESTRELLA transferred plaintiff from one holding cell to another, and continued to fondle and grope plaintiff, including her buttocks, without out her consent in view of, and with the knowledge of, OFFICER MATTHEW OLIVA and JOHN DOES 1-2.

22. At all times relevant herein, Plaintiff did not consent to Defendant(s) having physical contact with her or committing the aforesaid acts.

23. By and through the foregoing, Plaintiff was assaulted, battered, and harassed by the defendants.

24. OFFICER CHRISTOPHER ESTRELLA's assault and battery of Plaintiff was furthered and permitted by OFFICER MATTHEW OLIVA and JOHN DOES 1-2's failure to intervene on Plaintiff's behalf, and by failing to stop OFFICER CHRISTOPHER ESTRELLA from taking said actions.

24. Due to the aforementioned actions of Defendants, Plaintiff sustained serious emotional injuries and damages, the full extent of which is not known, including but not limited to, the violation of her Civil Rights, and has suffered in the past and continues to suffer great pain and mental anguish.

25. Plaintiff has in the past been, presently is, and will in the future, continue to be incapacitated from pursuing her usual duties, avocations, hobbies and/or recreational pursuits.

26. The City of New York is vicariously liable for the acts of OFFICER CHRISTOPHER ESTRELLA, OFFICER MATTHEW OLIVA, and JOHN DOES 1-2.

27. At all times relevant herein, the defendants acted jointly and in concert with each other.

28. At all times relevant herein, each defendant had the duty and the opportunity to protect the plaintiff from the unlawful actions of the other defendant, but failed to do so thereby proximately causing Plaintiff's injuries.

29. Solely by reason of the foregoing, excessive and unreasonable force and the unlawful seizure, by, Plaintiff was caused to be deprived of her rights, liberties and privileges under the Fourth and Fourteenth Amendments to the United States Constitution, and further deprived her of her rights, liberties and privileges, and the laws of the State of New York, and Plaintiff has been caused to sustain personal injuries more fully set forth herein.

30. Defendants' actions were objectively unreasonable and shocked the conscience.

31. Defendants are liable for compensatory, exemplary, and punitive damages pursuant to 42 U.S.C. § 1983.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

32. Plaintiff repeats and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.

33. The foregoing events constitute violations of plaintiff's statutory and constitutional rights, thereby entitling him to attorneys' fees, costs, and disbursements as permitted by 28 U.S.C. § 1988.

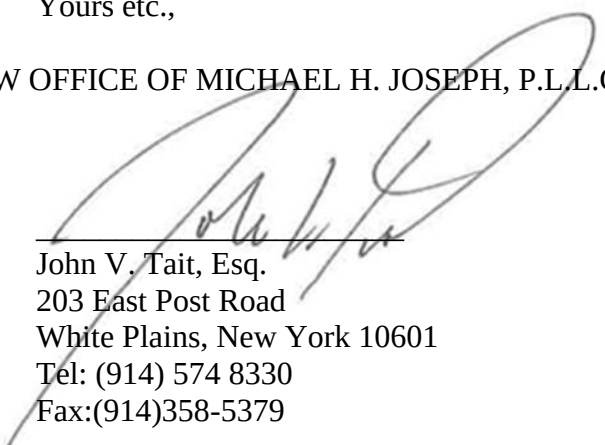
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees.

Dated: White Plains, N.Y.
November 22, 2022

Yours etc.,

LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C.

BY:



John V. Tait, Esq.
203 East Post Road
White Plains, New York 10601
Tel: (914) 574 8330
Fax: (914) 358-5379

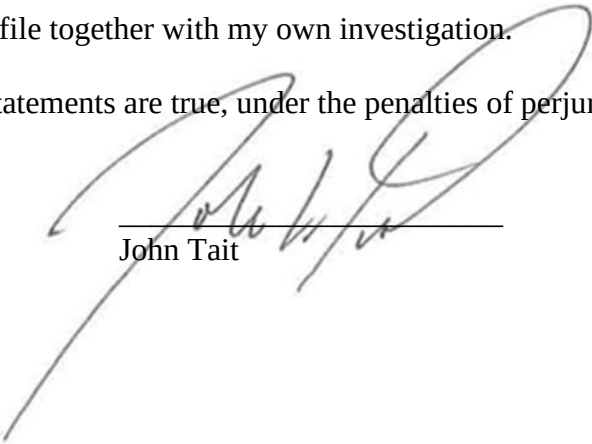
VERIFICATION

I, John Tait, the undersigned, an attorney admitted to practice in the State of New York, state that I am of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York,
November 22, 2022



John Tait

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

MARIAN MORENO,

Index No.:

Plaintiff(s),

-against-

CITY OF NEW YORK, OFFICER CHRISTOPHER
ESTRELLA, OFFICER MATTHEW OLIVA, JOHN DOE
OFFICERS 1-2,

Defendant(s).

NOTICE OF ELECTRONIC FILING
(Consensual Case)
(Uniform Rule § 202.5-b)

You have received this Notice because:

- 1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-Filing system (“NYSCEF”) above, and
- 2) You are a Defendant/Respondent (a party) in this case.

- **If you are represented by an attorney:**

Give this Notice to your attorney. (Attorneys: see “Information for Attorneys” pg.2).

- **If you are not represented by an attorney:**

You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The **benefits of participating in e-filing** include:

- Serving and filing your documents electronically
- Free access to view and print your e-filed documents

- Limiting your number of trips to the courthouse
- Paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- Visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

Information for Attorneys

An attorney representing a party who is served with this notice must either consent or decline consent to electronic filing and service through NYSCEF for this case.

Attorneys registered with NYSCEF may record their consent electronically in the manner provided at the NYSCEF site. Attorneys not registered with NYSCEF but intending to participate in e-filing must first create a NYSCEF account and obtain a user ID and password prior to recording their consent by going to www.nycourts.gov/efile

Attorneys declining to consent must file with the court and serve on all parties of record a declination of consent.

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

Dated:

__John Tait_____
Name

Law Office of Michael H. Joseph, PLLC
Firm Name

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